

liability are the same as those for negligence: duty, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.)

In addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant has not alleged an injury.

Cross-Defendant’s demurrer to Cross-Complaint’s fourth cause of action for negligence-negligence per se is SUSTAINED.

#### Fifth Cause of Action for Declaratory Relief

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another . . . in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.

Here, in addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant is not seeking a declaration of its rights or duties under any written instrument or contract but rather seeks an adjudication as to the respective fault of the parties as to Plaintiff’s claims. (Cross-Complaint, ¶¶ 29, 32 [“Cross-Complainant requests an adjudication and determination of the respective proportions of percentage of fault of all parties to this action, if any.”].) This goes beyond just analyzing a written instrument or contract and determining respective rights and responsibilities and would involve adjudication of Plaintiff’s case in chief.

Cross-Defendant’s demurrer to Cross-Complaint’s fifth cause of action for declaratory relief is SUSTAINED.

#### Ruling

The Court **SUSTAINS** Cross-Defendant’s demurrer to the Cross-Complaint in full, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

**14. 9:00 AM CASE NUMBER: C25-01385**

**CASE NAME: AMANDA KOTCH BERRY VS. FCA US LLC**

**\*HEARING ON MOTION IN RE: FOR AN ORDER TO ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6**

**FILED BY: KOTCH BERRY, AMANDA**

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff Amanda Kotch Berry's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure § 664.6. ("Motion").

### **Factual Background**

Plaintiffs filed her initial complaint on May 15, 2025. Defendant FCA US LLC filed an Answer on June 202, 2025. On February 3, 2026, Plaintiff filed a notice of conditional settlement of the case. Thereafter, on April 24, 2026, Plaintiff filed the instant motion seeking to enforce the parties settlement agreement.

### **Overview of Section 664.6**

Pursuant to the Code of Civil Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. (Code Civ. Proc., §664.6(a).)

California courts have interpreted section 664.6 as creating "a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met." (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429).

"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 numerous citations omitted.) "The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to...." (*Ibid.*) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (*Ibid.*)

"The statutory language makes clear, however, that a party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute." (*Hines, supra*, 167 Cal.App.4th at 1185.) Instead, the Court is authorized to "enter a judgment pursuant to the settlement regardless of whether [a party's] nonperformance of [their] settlement obligations [were] excused." (*Ibid.*)

### **Analysis**

The Complaint alleged various causes of action under the Song-Beverly Consumer Warranty Act – i.e.

it was a 'lemon law' suit. The Settlement Agreement, executed by Plaintiff on January 20, 2026, included the following general terms:

1. FCA to pay off the remaining loan balance on the vehicle in the amount of \$44,687.11.
2. FCA to issue a check in the amount of \$31,401.08 to Plaintiff at the time of the return of the subject vehicle.
3. FCO to issue check in the amount of \$10,000 to Plaintiff's counsel, with payment to be "expedited to the attorney following completion of the return of the Subject Vehicle to the manufacturer or its agents.'
4. FCA to pay civil penalties totaling \$58,911.81 in a check payable to Plaintiff's counsel's trust account. This payment was to be made "within one business day following completion of the return of the Subject Vehicle..."

All the above were to be completed within 60 days from the date of acceptance of the Settlement Agreement by Plaintiff. (Flores Decl. Ex. A.) The Settlement Agreement was signed by Plaintiff on January 20, 2026. As such, the 60-day deadline was March 21, 2026.

Exhibit A confirms that the parties had a valid, signed settlement agreement. It also includes detailed specific terms that each party was required to perform. Plaintiff's counsel presents a comprehensive timeline of what occurred and their efforts to complete the settlement per its terms – and FCA's complete failure to perform.

On March 2, Plaintiff's counsel sent an email to defense counsel seeking information regarding the upcoming deadline and scheduling the vehicle surrender. (Flores Decl. ¶ 5.) On March 9, counsel emailed FCA's repurchase coordinator James Harris to advise of the upcoming deadline and to coordinate the vehicle surrender. (¶ 6.) Mr. Harris responded on March 11 indicated that the checks had been requested and that a scheduling coordinator would reach out to arrange the vehicle surrender. (¶ 7.)

On March 19, Plaintiff's counsel followed up with Mr. Harris, who indicated that the checks were in and that scheduling would reach out. (¶ 9, Ex. B.) On March 23, two days after the deadline, Plaintiff's counsel contacted FCA's third-party surrender agent to follow up on scheduling the surrender of the vehicle. (¶ 11.) Plaintiff's counsel reached out to Mr. Harris on March 24 regarding the failure to schedule the surrender. (¶ 12.) Mr. Harris responded the next day indicating the scheduling was having difficulty securing a surrender dealership. (¶ 13.)

Plaintiff's counsel reached out to Mr. Harris again on March 27 and 30, noting that the ongoing delays were causing significant harm to Plaintiff, who needed the settlement funds to purchase a replacement vehicle. (¶ 14-15.) On April 1, Plaintiff's counsel emailed Mr. Harris to inform him that they had arranged to have the Subject Vehicle towed to Stoneridge CDJR, which had agreed to accept the surrender. (¶ 16.) On April 3, counsel again emailed Mr. Harris noting that they were in breach and demanded that FCA complete the settlement by April 10. (¶ 17.) Plaintiff's counsel again followed up on April 13 and 14 about the failure of FCA to make payments under the Settlement Agreement.

As of the date of the motion, no payments had been received.

Defendant FCA filed a one page “Opposition” that essentially admits that it has failed to comply with the terms of the Settlement Agreement. Instead, it argues that it has “has consistently worked toward completing the terms of the settlement agreement,” without explanation. In support is a declaration from FCA’s counsel indicating that FCA ‘is working diligently to comply in full with its obligations under the settlement agreement.’ He does not explain what that means or how he came about that knowledge. There is no declaration from anyone at FCA explaining why the payments have not been made or why they were unable to schedule the surrender of the vehicle but instead made it necessary for Plaintiff’s counsel to find a location to tow the Subject Vehicle.

Ms. Flores’s declaration indicates that on March 19, 2026, James Harris – FCA’s repurchase coordinator – advised that the “checks were in” and scheduling would reach out to coordinate surrender of the vehicle. (¶ 9.) Plaintiff’s counsel was then required to find a location to surrender the vehicle. That occurred on April 1, 2026. As of the date of the opposition, FCA has failed to make any payments despite the indication that the checks were already available in mid-March. There is no explanation for this delay. Notably, there is no word from Mr. Harris explaining why he said the checks were “in” on March 19, but to date they have not been provided to Plaintiff’s counsel.

FAC and its counsel’s actions – or more aptly inactions – are even more glaring in light of this Court’s order shortening time on the hearing of this motion. In that Order, the Court indicated that “counsel are ordered to meet and confer to resolve the issue of settlement payments by Zoom or in-person no later than 10 days from this order....” That order was issued on April 30 – meaning counsel were required to meet and confer by May 10. Plaintiff’s counsel filed a declaration on May 11 indicating that she reached out to FCA’s counsel on May 4 seeking a time to discuss. Defense counsel responded but did not provide dates, times, or availability to meet and confer. Plaintiff’s counsel then followed up on May 5 and 7 seeking compliance with this Court’s order. Defense counsel never responded.

The Court’s April 30 Order noted: “Failure to comply will result in this court issuing an OSC re contempt.” Defense counsel should keep an eye out for the OSC.

#### **Mandatory Penalties and Attorney Fees**

Plaintiff also seeks penalties pursuant to Code of Civil Procedure section 871.27 due to FCA’s failure to perform. Code of Civil Procedure section 871.27 provided, in relevant part, that a defendant “shall promptly process any agreed-upon motor vehicle restitution ... and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee’s counsel.” (*Id.* at (g)(2).) The failure to do so “shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise.” (*Ibid.*)

In addition, the Settlement Agreement indicates that in the event of a breach, the prevailing party “shall be entitled to recover reasonable attorney’s fees and costs incurred in the enforcement of this agreement.” (Flores Decl. Ex. A.) Plaintiff contends this applies at this stage.

“[A] court’s power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement.” (*Viejo Bancorp, Inc. v. Wood*,

(1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

In other words, under a 664.6 motion the Court is limited to determining whether a valid settlement agreement was entered into and, if so, entering a judgment that pursuant to the terms of the settlement. (*Hines*, supra, 167 Cal.App.4th at 1182.) Not only can it not determine if one party is a ‘prevailing party,’ but it cannot award the penalties sought pursuant to a motion under section 664.6.

“Under section 664.6, the [parties are] entitled to judgment ‘pursuant to the terms of the settlement’ [cite], **and nothing more.**” (*Machado*, supra, 39 Cal.App.5th at 792 emphasis added.) The Court does not, and cannot, make substantive determinations as to whether any party thereto has breached that agreement. (See e.g. *Viejo Bancorp, Inc.*, supra, 217 Cal.App.2d at 209 fn. 4.)

While the Court agrees that the statutory penalties outlined above are available, the awarding of the full amount will need to be decided at a later date. The Court strongly urges FCA to work with Plaintiff’s counsel to resolve this matter promptly to avoid additional penalties and fees to which Plaintiff may be entitled.

#### **Conclusion**

The Court **grants** Plaintiff’s motion to enter judgment according to the terms of the Settlement Agreement. Plaintiff shall submit the proposed form of judgment.

**15. 9:00 AM CASE NUMBER: C25-02014**  
**CASE NAME: DAVID VILLA VS. FUEGO BAR AND MEXICAN GRILL, LLC,**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**  
**FILED BY: VILLA, DAVID TORO**  
**\*TENTATIVE RULING:\***

Plaintiff’s motion for leave to file a second amended complaint is unopposed, and it is **granted**. This should have been handled by stipulation.

**16. 9:00 AM CASE NUMBER: MSC21-02445**  
**CASE NAME: NIST VS FARRELL**  
**HEARING IN RE: FOR ORDER TO SHOW CAUSE RE: CONTEMPT FOR SHANNA FARRELL'S FAILURE TO PAY COURT-ORDERED SANCTIONS**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

The ex parte application for a contempt order is **denied**. Neither contempt nor criminal proceedings are an appropriate remedy for a failure to pay money. Indeed, granting the motion would result only in an order to pay more money. Moreover, other than pointing out that the responding party